



Notification Waiver Determination

Waymark Hotels Group – Criterion Hotel Motel, Rockhampton, QLD

Acquisition	Criterion Rocky Op Co Pty Ltd and Waymark Hotels Properties No 46 Pty Ltd (as trustee for Criterion Rockhampton Property Trust), which are part of the Waymark Hotels Group, applied for a notification waiver in respect of their proposed acquisition of the land and business of the Criterion Hotel Motel in Rockhampton, Queensland (the Criterion Hotel Motel), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	2 September 2026

Parties to the Acquisition	The Waymark Hotels Group owns and operates hotels (pubs) that provide food, drink (including alcohol), gaming machines, accommodation services, and takeaway liquor retailing (bottle shops). It currently operates pubs and bottle shops in regional Queensland and the Northern Territory. The Waymark Hotels Group is part of the Vinta Group, a private real estate group. The target, the Criterion Hotel Motel, is a commercial hotel business located at 150 Quay Street, Rockhampton, Queensland, which offers hospitality services and accommodation. The Criterion Hotel Motel does not operate a bottle shop.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: - there is no horizontal overlap between the Waymark Hotels Group and the Criterion Hotel Motel in the supply of on-premises and takeaway packaged liquor, dining, gaming and accommodation services in Rockhampton or the surrounding local areas - there are alternative suppliers of on-premises and takeaway packaged liquor, dining, gaming and accommodation services in Rockhampton or the surrounding local areas.

	In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act